

**Superior Court of the State of California
County of Orange**

**Hon. ANDRE MANSSOURIAN
Department C12 – (657) 622-5212**

TENTATIVE RULINGS

Court will make every effort to post tentative rulings by approximately 3:00 p.m. on the court day before the date the motion is to be heard.

If the parties agree to submit on the Court's tentative ruling, please call Department C12 directly to inform the court that **all parties** submit to the Court's tentative ruling.

Reminder: Court does NOT provide court reporters.

No filings will be accepted nor considered after the tentative ruling is posted.

Parties are welcome to be present in court for the law and motion calendar or appear by Zoom. To make an appearance via Zoom please click the following link. If you are unable to log in, please call the department for an alternative arrangement. <https://www.occourts.org/civil-remote-hearings>.

September 11, 2026

#	Case Name	Tentative
1.	Callahan & Blaine, PC vs. Powell Works, Inc, a California Corporation 25-01478410	Motion to be Relieved as Counsel of Record The motion of attorney Frank Revere of Revere & Wallace to withdraw as attorney of record for defendant Powell Works, Inc. is GRANTED contingent upon the filing of a valid proof of service of the motion on the client. (Code Civ. Proc. § 284, CRC 3.1362.)

		Moving attorney is ordered to file a proof of service within 3 Court days of notice of this ruling. If the POS is not filed, moving attorney will not be relieved and the motion will be DENIED. THIS RULING IS FINAL. Clerk to give notice.
2.	Santos vs. General Motors, LLC 24-01407611	Motion for Attorney Fees OFF CALENDAR
3.	Vangelos vs. Mehta 25-01520113	Motion for Attorney Fees OFF CALENDAR
4.	Allstate Insurance Company vs. East Nine Condominium Association 25-01479772	1. Motion to Compel Further Responses to Special Interrogatories 2. Motion to Compel Production OFF CALENDAR. MOTIONS WITHDRAWN.
5.	Padilla Hernandez vs. Pacific Specialty Insurance Company 26-01537689	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Answers to Special Interrogatories 3. Motion to Compel Production Defendant Pacific Specialty Insurance Company's motions to compel responses to its first set of special interrogatories, first set of requests for production, and second set of form interrogatories are GRANTED. (See Code Civ. Proc., §§ 2030.290, 2031.300.) Plaintiff Mario Padilla Hernandez is ORDERED to serve verified responses without objections to defendant's first set of special interrogatories, first set of requests for production, and second set of form interrogatories, within 30 days of notice. Plaintiff shall produce any and all documents responsive to the first set of requests for production at the same time he serves his responses to this discovery. Sanctions in the total amount of \$2,430 (i.e., \$810 per motion) are GRANTED in favor of defendant and against plaintiff, payable within 30 days of notice. Defendant shall give notice.

6.	Larson vs. Lepak 22-01270567	1. Motion for Sanctions 2. Motion to Compel Answers to Form Interrogatories 3. Motion to Compel Response to Requests for Admissions CONTINUED
7.	ChargeTronix, Inc. vs. Landavazo 25-01535151	1. Motion to Compel Arbitration 2. Case Management Conference Defendant Xavier Landavazo’s Motion to Compel Arbitration is GRANTED. Defendant Landavazo moves to compel arbitration pursuant to the Federal Arbitration Act (“FAA”), 9 U.S.C. §§ 1-16, and Code of Civil Procedure section 1281 et seq. The FAA “applies where there is ‘a contract evidencing a transaction involving commerce.’” (<i>Allied-Bruce Terminix Companies, Inc. v. Dobson</i> (1995) 513 U.S. 265, 277 [quoting 9 USC § 2] [emphasis in original].) A court’s role in considering a petition to compel arbitration under the FAA is limited to “determining (1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute at issue. If the response is affirmative on both counts, then the Act requires the court to enforce the arbitration agreement in accordance with its terms.” (<i>Chiron Corp. v. Ortho Diagnostic Sys. Inc.</i> (9th Cir. 2000) 207 F.3d 1126, 1130.) “In determining the rights of parties to enforce an arbitration agreement within the FAA’s scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration.” (<i>Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC</i> (2012) 55 Cal.4th 223, 236.) “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (<i>Ibid.</i>) Existence of Arbitration Agreement “In determining the existence of an agreement to arbitrate, the trial court must employ a three-step burden shifting process. The party seeking to compel arbitration bears an initial burden to show an agreement to arbitrate; that burden can be met by providing a copy of

the alleged agreement. If that initial burden is met, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence, thereby shifting the burden back to the arbitration proponent. At that point, and “[b]ecause the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence.” (*Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 51 [cleaned-up].)

“[A] party seeking arbitration can carry its initial burden by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature. The party seeking arbitration need not ‘follow the normal procedures of document authentication’ and need only ‘allege the existence of an agreement and support the allegation as provided in rule [3.1330].’” (*Ramirez v. Golden Queen Mining Co., LLC* (2024) 102 Cal.App.5th 821, 831 [cleaned-up].)

Landavazo has sustained his burden of demonstrating the existence of an agreement to arbitrate by presenting an Employment Agreement between Plaintiff and Landavazo that was executed on September 18, 2022, by which Landavazo was employed as Plaintiff’s Chief Executive Officer. The Employment Agreement contains an arbitration provision requiring the parties to submit to binding arbitration before the American Arbitration Association all claims “concerning” Landavazo's employment or separation from employment with Plaintiff.

Plaintiff does not dispute the existence of an agreement to arbitrate. Rather, Plaintiff contends the arbitration agreement does not cover the claims asserted against Landavazo in the Complaint.

Is the Dispute Encompassed by the Agreement?

“California has a strong public policy in favor of arbitration and any doubts regarding the arbitrability of a dispute are resolved in favor of arbitration.... This strong policy has resulted in the general rule that arbitration should be upheld ‘unless it can be said with assurance that an arbitration clause is not susceptible to an interpretation covering the asserted dispute.’ The party opposing arbitration has the burden of demonstrating that an arbitration clause cannot be interpreted to require arbitration of the dispute.” (*Rice v. Downs* (2016) 248 Cal.App.4th 175, 185 [citation modified].)

The arbitration provision in this case describes two categories of disputes which are covered by the agreement. Prong (a) covers “any

controversy arising out of, or in connection with the validity, enforcement or construction of this Agreement, the attached RSGA and as well as the attached Information and Invention Assignment.” Prong (b) covers “any actions or claims **concerning the Employee’s application for employment, employment, or separation from employment**, including” “any statutory claims for discrimination, harassment, retaliation, tortious conduct, wrongful discharge, breach of contract, promissory estoppel, expense reimbursement, wages, compensation, or claims for violations of any federal, state, or local statute, regulation, or common law.” (emphasis added.)

No causes of action arise out of claims covered by Prong (a). Thus, the issue is whether Plaintiff’s claims relate to Landavazo’s employment or separation from employment with ChargeTronix.

“The decision as to whether a contractual arbitration clause covers a particular dispute rests substantially on whether the clause in question is “broad” or “narrow.” (*Howard v. Goldbloom* (2018) 30 Cal.App.5th 659.) The arbitration clause in this case is broad as it covers not only claims involving the Employment Agreement, but also “any actions or claims concerning the Employee’s application for employment, employment, or separation from employment.”

Landavazo argues that the legal theories in the Complaint all concern his employment with Plaintiff. All of the alleged wrongdoing arose because of Landavazo’s role as CEO with the company.

In opposition, Plaintiff disagrees with this characterization and asserts that all of its claims are not related to Landavazo’s employment with ChargeTronix, which include post-termination conversion of company property, access after revocation, statutory misuse of data, and a constructive trust over real estate brought with diverted funds. Such independent corporate, property, and statutory duties are not transformed into employment claims.

Plaintiff cites to *Howard*, supra, as instructive on that distinction – that certain claims exist independently of employment. The issues in *Howard*, however, are not similar to the present conflict.

In *Howard*, the Court of Appeal found the dispute was not rooted in Howard’s employment with the company as its president because he had released the company from all claims “known or unknown, suspected or unsuspected” – “the parties extinguished every vestige of an employment relationship, putting all [employment] disputes and potential disputes behind them.” (Id. at 669.) Howard’s claim instead was rooted in any harm he suffered as a company shareholder. “The

dispute is whether defendants wrongfully diluted the value of his shares, breached their fiduciary duties to Howard as a minority stockholder, and unjustly enriched themselves at his expense. Defendants' fiduciary duties to minority shareholders and alleged wrongs exist independently of any employment relationship between Howard and Kaggle." (Id. at 670.) Thus, the agreement to arbitrate all disputes "arising out of, relating to, or resulting from" his employment or termination did not apply to Howard's claims.

The critical distinction from *Howard* is that Defendant is suing Landavazo for breach of fiduciary duty, conversion, fraud, interference and statutory claims – which are rooted in the employment relationship itself. Unlike shareholder claims that exist independently of employment, the corporation's claims against Landavazo for employment-related misconduct directly arise from the employment relationship and the duties owed as an employee and officer during that relationship. Therefore, the arbitration provision encompasses the corporation's claims against Landavazo for acts committed during employment.

As for post-termination claims, those are also covered by the arbitration agreement. In *Buckhorn v. St. Jude Heritage Medical Group* (2004) 121 Cal.App.4th 1401, the Court of Appeal found that a discharged physician's tort claims against a medical group for wrongful termination, defamation, and interference, including those allegedly committed after discharge, were rooted in the employment relationship created by the contract and thus fell within the arbitration clause in the employment agreement. (Id. 1407.)

In this case, Plaintiff's post-termination claims are based on information and/or property Landavazo obtained while employed by Chargetronix such as confidential customer and client lists; the company's vehicle, proprietary information; and unauthorized access of company computers and data. Because such claims arise from Plaintiff's role as CEO for Chargetronix they are also covered by the arbitration agreement.

Based on the foregoing, the court finds Landavazo has met his burden of demonstrating the existence of a valid agreement to arbitrate that encompasses the disputes at issue. Plaintiff has not raised any argument that the arbitration provision is otherwise unenforceable.

		Accordingly, the motion is GRANTED and the action is stayed pending completion of arbitration. The Case Management Conference is VACATED. The Court now sets this matter for a Status Conference re: Arbitration on August 26, 2027, at 9:30 a.m. in Department C12. A joint status report shall be filed by August 6, 2027. Moving Party to give notice.
8.	Nguyen vs. Custos Terrae 26-01541241	1. Joinder 2. Motion to Compel Arbitration 3. Case Management Conference Defendant George Balch’s petition to compel arbitration and defendant Zeta Investments, Inc.’s (erroneously sued as “ReMax Real Estate One”) joinder to the petition to compel arbitration are CONTINUED January 22, 2027, at 9:30 a.m. in Department C12, based on Plaintiff’s Notice of Stay (Bankruptcy) filed on September 4, 2026, as ROA 112. The court now sets a STATUS CONFERENCE RE: PLAINTIFF’S STANDING TO SUE ON THE COMPLAINT IN LIGHT OF CHAPTER 7 BANKRUPTCY FILING for January 22, 2027, at 9:30 a.m. in Department C12. The court ORDERS plaintiff Minh Tuong Nguyen to (1) give the bankruptcy trustee in his Chapter 7 Bankruptcy proceeding (U.S. Bankruptcy Court, Central District of California, Case No. 8:26-bk-10347) notice of his complaint filed in this instant action pending in the Orange County Superior Court, by no later than Friday 9/18/26 at 4:00 p.m.; and (2) serve and file a statement or declaration attesting to the status of his standing to sue on the complaint in this instant action in light of his Chapter 7 bankruptcy filing, by no later Friday January 7, 2027. Plaintiff/cross-defendant Minh Tuong Nguyen (hereinafter, “plaintiff”) has filed a “notice of stay of proceedings,” which attaches a “notice of bankruptcy case filing” showing that as of 2/4/26, plaintiff has filed for Chapter 7 bankruptcy with the U.S. Bankruptcy Court, Central District of California, Case No. 8:26-bk-10347. (ROA No. 112.) Plaintiff’s bankruptcy filing automatically stays the first amended cross-complaint as alleged against plaintiff (only).

		But plaintiff's bankruptcy filing does not stay the action on the complaint. A bankruptcy filing only automatically stays actions <i>against</i> the debtor; it does not stay actions <i>by</i> the debtors against others. (See 11 U.S.C. § 362(a)(1); see also <i>Shorr v. Kind</i> (1991) 1 Cal.App.4th 249, 253.) That said, all of the debtor's property and interests (including plaintiff's claims in the complaint) become the property of the bankruptcy estate when a Chapter 7 bankruptcy petition is filed. (11 U.S.C. § 541.) Thus, plaintiff is no longer the real party in interest on the complaint and lacks standing to proceed; the complaint can be maintained only if the bankruptcy trustee substitutes in or abandons the claims. (<i>Cloud v. Northrop Grumman Corp.</i> (1998) 67 Cal.App.4th 995, 1001-1005, 1021.) Plaintiff is granted a reasonable time to allow the bankruptcy trustee to determine whether the bankruptcy trustee wishes to proceed with the complaint in this case, and if so, to amend the complaint to substitute the bankruptcy trustee as the plaintiff, or if not, to abandon the claim and allow plaintiff to proceed in his own right. (See <i>ibid.</i>; see also <i>Haley v. Dow Lewis Motors, Inc.</i> (1999) 72 Cal.App.4th 497, 511.) The Case Management Conference is CONTINUED to January 22, 2027, at 9:30 a.m. in Department C12. Plaintiff's anti-SLAPP motion calendared for January 8, 2027, (ROA Nos. 73, 77) is CONTINUED to January 22, 2027, at 9:30 a.m. in this department. Once again, the Court orders Plaintiff to file a statement or declaration updating this Court as to the status of his standing in this action in light of the bankruptcy by January 7, 2027. Court clerk shall give notice.
9.	EOS Optical INC. vs. Cler Vision, Inc. 24-01388738	1. Motion - Other (To Furnish Bond) 2. Case Management Conference Cross-defendants EOS Optical, Incl, Michelle Jiang, Jason Jiang, and Kaiyan Kuang's motion for an order requiring cross-complainant Natasha Hamida to post bond is DENIED. (Corp. Code, § 800, subd. (c) [authorizing requested relief].) Cross-complainants' request for judicial notice is GRANTED. (Evid. Code, § 452, subd. (d)(1).)

		Cross-complainants' evidentiary objection no. 1 is SUSTAINED as to the portion reading "Defendant Wei Chiao Lin through" as lacking foundation and personal knowledge, and otherwise OVERRULED. Cross-complainants' evidentiary objection no. 2 is SUSTAINED (lacks foundation, lacks personal knowledge). Cross-complainants' evidentiary objection no. 3 is SUSTAINED as to the first sentence, and to the portion of the second sentence reading "purportedly made to Keith Morey" (lacks foundation, lacks personal knowledge), and otherwise OVERRULED. Moving parties have not addressed the derivative cross-claims, nor shown "there is no reasonable possibility that the prosecution of the cause of action alleged in the complaint against the moving party will benefit the corporation or its shareholders." (Corp. Code, § 800, subd. (c)(1).) Further, even if moving parties had satisfied this showing, moving parties fail to provide any evidence as to the amount of bond. (Corp. Code, § 800, subd. (d).) The Case Management Conference is VACATED, and the Court sets this matter for a jury trial on December 3, 2027, at 11:00 a.m. in Department C12. Jury fees have been paid. Cross-complainant Natasha Hamida shall give notice.
10.	Stubner vs. Raintree Realty, LLC 25-01452404	Motion for Preference Plaintiff Terez Stubner's Motion for Trial Preference is GRANTED. (Code Civ. Proc. §36, subd. (a).) Moving Party has established that she is over 70 years of age, has a substantial interest in the action as a whole and that her health condition is such that a preferential trial setting is necessary to prevent prejudicing her interest in the litigation. The current trial date of May 28, 2027, is VACATED. The Court now sets this matter for a Jury Trial on December 10, 2026, at 11:00 a.m. in Department C12. Clerk shall provide notice.